

5	Hannegan vs. Hyundai Motor America 2024-01416484	1. Motion to Compel Arbitration 2. Case Management Conference <i>Motion is vacated. CMC continued to 11/13/26. See minute order dated 6/8/26.</i>
6	Manalese vs. Las Flores Internet, LLC 2023-01363921	Motion for Summary Judgment and/or Adjudication Defendant Las Flores Internet, LLC dba Strikeworks Solutions' motion for summary adjudication as to the claims of plaintiff Karlina Manalese is denied in its entirety. Defendant seeks summary adjudication as to the first, third, fifth, sixth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth and fifteenth causes of action to the Second Amended Complaint (SAC). It should be noted that Strikeworks' Separate Statement of Undisputed Material Facts is not in compliance with CRC Rule 3.1350. California Rules of Court, rule 3.1350(d) requires that the separate statement "separately identify each cause of action, claim, issue of duty, or affirmative defense, and each supporting material fact claimed to be without dispute with respect to the cause of action, claim, issue of duty, or affirmative defense." When seeking summary adjudication, "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (CRC, rule 3.1350.) As Strikeworks lumped all of the facts together, indicating that each fact supports each item of requested adjudication, if there is a triable issue as to any fact, the motion fails in its entirety. Nevertheless the court addresses the motion on the merits. When a defendant seeks summary adjudication, it bears the burden of proof by a preponderance of the evidence to establish that a cause of action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. (Code of Civ. Proc., § 437c, subd. (p)(2); <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287.) Strikeworks has failed to meet its initial burden with regard to causes of action ten through fifteen. Plaintiff's causes of action ten through fifteen are based on Strikeworks failure to pay Plaintiff commission owed. Strikeworks contends these causes of action fail as it is undisputed Manalese did not earn the commission she contends was unpaid, therefore there was no breach. Strikeworks contends that although